

FOUNDER EQUITY AND COLLABORATION AGREEMENT

This Founder Equity and Collaboration Agreement (the "**Agreement**") is made effective as of **February 9, 2026** (the "**Effective Date**"), by and between:

- **Founder / Owner: Tuan Anh ("Peter") Dinh Bui**, email: peterbuics@gmail.com, address: _____ ("**Founder**"), and
- **Co-Founder / Technical Partner: Pranav Kumar**, email: cdtpranavkumar1126@gmail.com, address: _____ ("**Co-Founder**").

Founder and Co-Founder are each a "**Party**" and together the "**Parties**."

1. Purpose and Project

The Parties agree to collaborate on the project known as **WindieOS** (the "**Project**"), intended to be operated through **WindieOS, Indiana, LLC** (the "**Company**"), whether already formed or to be formed.

2. Equity Ownership

1. Co-Founder is granted **thirty percent (30.00%)** equity ownership in the Company (the "**Equity Grant**"), subject to vesting under Section 3.
2. Founder shall hold the remaining ownership interest unless otherwise adjusted by written agreement signed by both Parties.
3. This Agreement does not grant salary, bonus, or other cash compensation unless separately agreed in writing.

3. Vesting Schedule (Standard Founder Vesting)

1. The Equity Grant vests over **four (4) years** beginning on the Effective Date.
2. Vesting includes a **twelve (12) month cliff**:
 - On the 12-month anniversary of the Effective Date (**February 9, 2027**), **25% of the Equity Grant** vests (equal to **7.5%** of total Company equity).
3. After the cliff, the remaining **75% of the Equity Grant** vests in **36 equal monthly installments** through **February 9, 2030**, provided Co-Founder remains actively engaged under this Agreement.
4. No additional vesting occurs after termination of Co-Founder's active role, except as expressly agreed in writing.
5. Any unvested portion is automatically forfeited upon termination.

4. Roles and Responsibilities

1. Co-Founder's role is **Technical Partner**.
2. Co-Founder shall materially contribute to all major technical areas required for development and deployment of the Project, including:

- Application development,
 - Infrastructure/deployment support,
 - Technical problem-solving and implementation.
3. Both Parties will collaborate in good faith and communicate material blockers promptly.
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5. Decision-Making and Governance

1. The Parties intend equal collaboration in planning and execution.
 2. **Founder has final decision authority** on Project and Company matters, including strategic, technical, and operational deadlocks.
 3. Major ownership, financing, or structural changes require a written agreement signed by both Parties.
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6. Intellectual Property

1. **Pre-existing IP:** Founder retains sole ownership of all Project-related intellectual property, code, documents, and assets created before the Effective Date.
 2. **Future Work Product Ownership Model:** As between the Parties, each Party initially owns the work product that Party personally creates.
 3. **Assignment Requirement:** Each Party agrees to execute further written assignments reasonably requested to transfer relevant Project IP into the Company for commercialization, fundraising, operations, or legal hygiene.
 4. Until any assignment is executed, each Party grants the other Party and the Company a non-exclusive, royalty-free license to use such contributed work for the Project.
 5. No Party may sell, license, or reuse Project-confidential code/assets externally in a way that harms the Project without prior written consent.
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7. Confidentiality

1. Each Party shall keep strictly confidential all non-public technical, business, product, and operational information relating to the Project and Company.
 2. Confidential information may be used only for Project purposes.
 3. Neither Party may disclose confidential information to third parties except:
 - With prior written consent, or
 - As required by law (with prompt notice where legally permitted).
 4. Confidentiality obligations survive for **five (5) years** after termination, and indefinitely for trade secrets while legally protected.
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8. Compensation and Expenses

1. No salary or wages are required under this Agreement unless separately agreed in writing.
 2. Reimbursements, if any, require prior written approval from Founder.
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9. Termination and Fair Standard Terms

1. This Agreement starts on the Effective Date and continues until terminated by either Party.
 2. Either Party may terminate:
 - Without cause, with **30 days** written notice, or
 - Immediately for material breach.
 3. On termination:
 - Vested equity remains with Co-Founder, subject to applicable law and Company governing documents.
 - Unvested equity is forfeited.
 4. The Company and/or Founder has a **right of first refusal** to purchase Co-Founder's vested equity before transfer to third parties, on fair market value terms or as set by Company governing documents.
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10. Representations

Each Party represents that:

1. They have authority to enter this Agreement.
 2. Their participation does not knowingly violate other binding obligations.
 3. They will comply with applicable laws in Project activities.
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11. Dispute Resolution, Governing Law, and Venue

1. This Agreement is governed by the laws of the **State of Indiana**, without regard to conflict-of-law rules.
 2. The Parties consent to exclusive venue in state or federal courts serving **Tippecanoe County, Indiana**.
 3. The Parties will first attempt good-faith informal resolution before filing claims.
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12. Miscellaneous

1. **Entire Agreement:** This is the full agreement on this subject and supersedes prior oral or written discussions.
 2. **Amendments:** Any amendment must be in writing and signed by both Parties.
 3. **Assignment of Agreement:** Neither Party may assign this Agreement without the other Party's written consent, except assignment to the Company in connection with formation/restructuring.
 4. **Severability:** If any provision is unenforceable, the remaining provisions remain effective.
 5. **Counterparts and Signatures:** Physical signatures are valid and binding.
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13. Signatures

By signing below, each Party confirms they have read, understood, and agreed to this Agreement.

FOUNDER / OWNER

Name: Tuan Anh ("Peter") Dinh Bui

Email: peterbuics@gmail.com

Signature: _____

Date: _____

CO-FOUNDER / TECHNICAL PARTNER

Name: Pranav Kumar

Email: cdtpranavkumar1126@gmail.com

Signature: _____

Date: _____